



CARBON GOVCLOUD RIDER

Carbon Manufacturing Systems Corporation, a Delaware corporation (“Carbon”)

Version 1.0 · Effective August 11, 2026

Applies to Carbon’s controlled environment, currently reachable at itar.carbon.ms and mes.itar.carbon.ms

1. Scope and Incorporation

1.1 Scope. This GovCloud Rider (“Rider”) supplements the Carbon Terms of Service (“Terms”) and the Enterprise Subscription Agreement or other written commercial agreement between Carbon and Customer (the “Agreement”), and applies only to Customer’s access to and use of the Controlled Environment. It does not apply to Carbon’s standard commercial cloud.

1.2 Binding effect. This Rider binds Customer when an administrator with authority to bind Customer accepts it in-product, as described in Appendix B, at or before Customer’s first use of the Controlled Environment. Where Customer’s procurement practices require a countersigned copy, Carbon will provide this Rider for execution upon request, with the same effect as acceptance under Appendix B. Each Authorized User is individually bound by the attestation described in Section 3.2 and Appendix A upon submitting it. Access to the Controlled Environment is conditioned on both.

1.3 Order of precedence. Where the Agreement addresses a subject covered here, the Agreement controls. Otherwise, this Rider controls over the Terms, including the Privacy Policy incorporated into them, to the extent of any conflict concerning the Controlled Environment. In all other respects the Terms remain in full force.

1.4 Privacy Policy. For the Controlled Environment, this Rider supersedes the “International Transfers” section of the Carbon Privacy Policy. The location and handling of data in the Controlled Environment are governed by Section 4.1 of this Rider.

2. Definitions

2.1 “ITAR” means the International Traffic in Arms Regulations, 22 C.F.R. Parts 120–130.

2.2 “U.S. Person” has the meaning given at 22 C.F.R. § 120.62: a U.S. citizen or U.S. national, a lawful permanent resident (a “Green Card” holder), or a protected individual such as an admitted refugee or asylee. It also includes an entity incorporated to do business in the United States, as provided in that section.

2.3 “Controlled Environment” means the Carbon instance Carbon operates for the storage and processing of export-controlled technical data, hosted in the AWS GovCloud (US) partition, and any supporting infrastructure Carbon operates in connection with it.

2.4 “Controlled Data” means technical data controlled under ITAR that Customer or its Authorized Users submit to, generate within, or store in the Controlled Environment.

2.5 “Authorized User” means an individual to whom Customer grants access to the Controlled Environment under Customer’s account.

3. Customer Obligations

3.1 U.S. Persons only. Customer will not invite, provision, or otherwise permit access to the Controlled Environment by any person who is not a U.S. Person. This restriction covers access of any

kind, including visual access by way of screen sharing, screen recording, observation of a display, or transmission of screenshots.

3.2 Attestation. Each Authorized User must complete the attestation described in Appendix A at first login, before reaching any Customer data, and must renew it no less than annually as described there. Customer is responsible for the accuracy of every attestation submitted under its account and will not direct, encourage, or permit any individual to attest falsely.

3.3 Access administration. Customer will assign a unique account to each Authorized User and will not create, share, or permit shared, generic, or service accounts for human use. Customer will enable multi-factor authentication where Carbon makes it available, will revoke an Authorized User's access within one business day of that individual's departure or any change in their U.S. Person status, and will review its own list of Authorized Users no less than quarterly.

3.4 Data outside the Controlled Environment. Customer owns its data and may export it at any time. Customer acknowledges that Carbon's controls under Section 4 apply only within the Controlled Environment, and that once Controlled Data is exported, downloaded, printed, transmitted, or otherwise removed, Customer is solely responsible for handling it in compliance with ITAR. Customer will not transmit Controlled Data through unencrypted email or store it in cloud services, personal devices, or removable media that its own export compliance program has not approved.

3.5 Classification and labeling. Customer is responsible for identifying which of its data is Controlled Data and for applying the labeling controls Carbon makes available in the Controlled Environment. Carbon does not review, classify, or label Customer data.

3.6 Restricted parties. Customer represents that neither it nor any Authorized User is debarred, denied, designated, or otherwise listed on the DDTC Debarred Parties List, the OFAC Specially Designated Nationals and Blocked Persons List, the BIS Denied Persons List, Entity List, or Unverified List, or the SAM Exclusions list. Customer will notify Carbon in writing within five business days if that ceases to be true.

3.7 Incident notification. Customer will notify Carbon's Export Compliance Contact (Section 9.4) without undue delay, and in no event later than twenty-four (24) hours, upon becoming aware of any known or suspected access to the Controlled Environment by a person who is not a U.S. Person, any loss or theft of a device holding Controlled Data drawn from the Controlled Environment, or any other suspected violation of this Rider.

3.8 Customer's own compliance program. Customer maintains its own export compliance program and remains responsible for its own registration, licensing, and authorization obligations. Carbon's Technology Control Plan governs Carbon's personnel, systems, and facilities only, and confers no rights and imposes no obligations on Customer's environment or personnel.

4. Carbon Obligations

4.1 Data residency. Carbon will store and process Controlled Data only within the Controlled Environment in the AWS GovCloud (US) partition, operated within the United States. Carbon will not move Controlled Data outside the United States, and will give Customer prior written notice before any change to the hosting region or partition.

4.2 Carbon personnel. Access to the Controlled Environment by Carbon personnel is limited to individuals named on Carbon's Authorized Access Roster, each of whom is a U.S. Person whose status has been verified through documentary review, who has completed ITAR training before receiving access and annually thereafter, and who has signed a non-disclosure agreement expressly

acknowledging their ITAR obligations. As of the effective date, that roster consists of Carbon's Chief Executive Officer and Chief Technology Officer. Carbon personnel and contractors who are not U.S. Persons are excluded from the Controlled Environment without exception. That exclusion extends beyond the application layer to all supporting infrastructure, including AWS GovCloud console and IAM access, database access, log aggregation, CI/CD pipelines, and any support, monitoring, or observability tooling capable of displaying Customer data.

4.3 Encryption. Carbon will encrypt Controlled Data at rest using AES-256 or an equivalent standard, and in transit using TLS 1.2 or higher.

4.4 Logging and review. Carbon will log access to the Controlled Environment, recording user identity, time of access, and resources accessed. Carbon reviews these logs quarterly and retains them, together with the records of those reviews, for a minimum of five (5) years.

4.5 Third-party services. Carbon will not permit any third-party service with the ability to access Controlled Data in unencrypted form to connect to the Controlled Environment unless that service is operated within the United States and restricts such access to U.S. Persons. Every third-party service with such access is vetted and approved in advance by Carbon's Chief Executive Officer and Chief Technology Officer, and a current list is available to Customer on request. Ancillary services that cannot access Controlled Data, such as transactional email used to deliver login links containing no technical data, are outside the scope of this Section but are reviewed under Carbon's Technology Control Plan.

4.6 Compliance program. Carbon maintains an active registration with the Directorate of Defense Trade Controls as a Manufacturer/Exporter, and maintains a written Technology Control Plan that is reviewed, updated, and re-approved annually.

4.7 Incident notification. Carbon will notify Customer without undue delay, and in no event later than forty-eight (48) hours, after confirming an incident affecting Customer's Controlled Data, and will cooperate reasonably with Customer's investigation. Carbon may file a voluntary disclosure with DDTC where it determines one is warranted and, where legally permissible, will inform Customer before doing so where the disclosure concerns Customer's Controlled Data.

5. Compliance Scope; No Government Authorization Representations

5.1 The Controlled Environment is designed to support Customer's compliance with ITAR requirements for the storage and handling of export-controlled technical data. It is not FedRAMP authorized, has not been assessed or certified under the Cybersecurity Maturity Model Certification (CMMC) program, and is not authorized for classified information at any level. Customer will not submit classified information to the Controlled Environment.

5.2 Carbon makes no representation that the Controlled Environment satisfies requirements applicable to Controlled Unclassified Information (CUI) under any government contract or regulation, including DFARS 252.204-7012 or NIST SP 800-171. Customer is solely responsible for determining whether the Controlled Environment is suitable for any obligation arising under Customer's own contracts.

6. Allocation of Responsibility

6.1 Carbon controls the Controlled Environment. Customer controls what data it places into that environment and which individuals it grants access to. Neither party assumes the other's responsibilities by entering into this Rider.

6.2 Carbon has no obligation to review, monitor, or classify Customer data. Where Carbon personnel access Customer data to provide support under the Terms, that access is exercised only by individuals on the Authorized Access Roster described in Section 4.2.

6.3 Nothing in this Rider makes Carbon the exporter of Customer's technical data or relieves Customer of any licensing, agreement, or authorization requirement applicable to Customer under ITAR.

7. Suspension and Termination

7.1 Carbon may immediately suspend an individual Authorized User, or Customer's access to the Controlled Environment, upon a known or reasonably suspected violation of this Rider or of applicable export control law, without prior notice.

7.2 A suspension under Section 7.1 is not a failure of the service, does not entitle Customer to a service credit, and does not give rise to liability on Carbon's part. Carbon will notify Customer of the suspension and the basis for it as promptly as circumstances permit.

7.3 Either party may terminate Customer's use of the Controlled Environment where continued operation would, in that party's reasonable judgment, cause a violation of export control law.

8. Return and Destruction of Data

8.1 For thirty (30) days following termination, Carbon will make Customer's data available for export in the formats the Controlled Environment supports.

8.2 Following that window, Carbon will sanitize Controlled Data from production systems using methods consistent with NIST SP 800-88 Rev. 1, and will purge it from backups within fourteen (14) days thereafter as those backups age out.

8.3 Carbon will provide Customer a written certificate of destruction upon request, identifying the systems sanitized, the method applied, and the date of completion.

9. General

9.1 Survival. Sections 2, 3.4, 3.8, 5, 6, 8, and 9 survive termination.

9.2 No other modification. Except as stated here, this Rider does not modify the Terms, including their provisions on warranties, limitation of liability, indemnification, governing law, and dispute resolution.

9.3 Changes. Carbon may update this Rider by notice to Customer. Where an update materially changes an Authorized User's obligations, Carbon will require each Authorized User to re-attest before continued access.

9.4 Contacts and notices. Carbon's Security Contact and Export Compliance Contact is Chase Foster, Chief Executive Officer, chase@carbon.ms. Customer's export compliance contact is the individual designated during in-product acceptance under Appendix B, or on a countersigned copy if one is executed. Notices under this Rider may be given by email to these contacts and are effective on receipt.

Appendix A — In-Product Attestation

The Controlled Environment presents the following blocking screen to every Authorized User at first login and upon each renewal or Rider update. All access is blocked until every checkbox is selected and the full legal name is typed. Selecting “I am not a U.S. Person” ends the session.

ITAR-Controlled Environment

This environment stores and processes technical data controlled under the International Traffic in Arms Regulations (ITAR). Access is restricted to U.S. Persons.

A U.S. Person is a U.S. citizen or U.S. national, a lawful permanent resident (Green Card holder), or a protected individual such as an admitted refugee or asylee. If you are none of these, you are not permitted to proceed, regardless of who invited you or where you are located.

- ☐ I certify that I am a U.S. Person as defined above.
- ☐ I agree to notify Carbon and my employer immediately if my U.S. Person status changes, and to stop using this environment until my access is re-confirmed.
- ☐ I understand that a false attestation may violate U.S. export control law, including the Arms Export Control Act, and can carry civil and criminal penalties.

Full legal name: _____

[Submit and enter] [I am not a U.S. Person]

This attestation expires 365 days after submission. Continued access requires re-attestation against the then-current version of this Rider.

Recorded on each submission: user ID, company ID, typed full legal name, timestamp, IP address, user agent, and the version and content hash of this Rider and the attestation text in force at that moment. Carbon retains these records for the period stated in Section 4.4 and will make Customer’s own users’ records available to Customer on request.

Appendix B — Administrator Acceptance (Entity Level)

The Controlled Environment presents the following screen to the first administrator of Customer's account, before any use of the Controlled Environment, and again upon any material update to this Rider under Section 9.3. The administrator's acceptance binds Customer under Section 1.2.

Accept the Carbon GovCloud Rider on behalf of your company

You are setting up access to Carbon's ITAR-controlled environment. Before your company can use it, a representative with authority to bind it must accept the Carbon GovCloud Rider, which governs U.S.-Persons-only access and each party's export control responsibilities. [View the full Rider]

- ☐ I have authority to bind [Company] to the Carbon GovCloud Rider.
- ☐ On behalf of [Company], I accept the Carbon GovCloud Rider, including its U.S.-Persons-only access requirement and the Customer obligations in Section 3.

Full legal name: _____

Title: _____

Export compliance contact for notices (name and email):

[**Accept on behalf of [Company]**] [**Cancel**]

Recorded on submission: acceptor's user ID, typed name and title, company ID, designated compliance contact, timestamp, IP address, user agent, and the version and content hash of the Rider accepted.